

at the oral proceedings, the board concluded that the requests were admissible under the circumstances.

In T 2471/10 the respondents could have reasonably expected amendments like those made in the claims of the appellant's new request and thus they could not have been taken by surprise. Accordingly, the respondents' absence was no obstacle to admitting the appellant's new request into the proceedings and taking a decision on it.

5.5.5 New submissions after debate closed

In T 360/13 the appellant waited until after the board's deliberations, but before it announced its decision, i.e. the point in the oral proceedings when the debate had already been closed and the case was ready for decision, to file a new auxiliary request amending its previous one by deleting a feature whose clarity had already been discussed. The board noted that, once the debate had been closed, the criteria for admitting new submissions were especially strict (Art. 15(5) RPBA 2007). In the case in hand, there was no justification at all for filing the new auxiliary request so late.

Continuation of the appeal proceedings after the end of oral proceedings is not, as such, a reason for admitting new submissions or additional evidence relating to issues which were not admitted at the first oral proceedings or in respect of which the debate had indeed been closed. In the board's view, presenting a party's case little by little, depending on the further evolution of the case, is not in line with the principle of procedural economy (T 577/11).

5.6. Parties' right to submit observations on amendments – Article 13(2) RPBA 2007

In R 9/11 the Enlarged Board held that Art. 13(2) RPBA 2007, which gives parties a right to comment on new submissions filed by others, did not inevitably extend to having all auxiliary requests – without any further examination of their prima facie allowability – automatically admitted into the proceedings. In R 1/13 the Enlarged Board stated that the petitioner's suggestion that the right to be heard carries with it, in the case of requests filed in response to late objections, a right to a full discussion which transcends the requirement of admissibility was simply incorrect. A late objection may lead to more latitude in the filing of requests in response but there is no certainty of admissibility, let alone of a more thorough discussion if admissibility is achieved. If the petitioner was correct, any request filed in response to a late objection would be admissible even if it clearly had no prospect of overcoming the objection. See also R 5/15.

5.7. Communication of a board of appeal

The purpose of a communication of a board of appeal pursuant to Art. 15(1) RPBA 2007 was to prepare the oral proceedings; it was not an invitation to the parties to make further submissions or to file further requests (T 1459/11 and T 1862/12; see also T 752/16 and T 995/18 which confirm this case law for Art. 15(1) RPBA 2020).

In T.1168/08, the board stated that the appellants' justification for the late filing of the new requests, namely that they had been filed in reaction to the board's communication, was not acceptable here, because the argumentation in support of the board's preliminary opinion corresponded in substance to the reasoning of the respondent in reply to the grounds of appeal. A board communication under Art. 15(1) RPBA 2007 is intended as guidance for the oral proceedings. It helps the parties to focus their argumentation on issues that the board considers crucial for reaching its decision. Where the board's communication contains a preliminary opinion based solely on the issues raised by the parties and their arguments, that communication cannot be taken as a justification for submitting new requests that the parties could have filed earlier (see also T.253/10, T.582/12).

In T.30/15 the appellant argued that the board's preliminary opinion had raised a new objection to the sufficiency of the description. That was why it had filed a new document, doing so as soon as possible. The board disagreed: the cited passage of its preliminary opinion did not contain any new objection but merely summarised those already set out in the decision under appeal. Filing the new document in response was therefore not justified.

In T.598/17 the board did not accept the argument made by the respondent (proprietor) that before the preliminary opinion of the board it had not been clear "in which direction the case would develop". It was the respondent's procedural obligation to react to the grounds of appeal by filing appropriate (auxiliary) requests suitable to overcome the objections raised. In T.101/15 the board likewise underlined that the parties were expected to play an active role and to provide requests and substantive submissions at an early stage. See also T.946/16.

By contrast, the board in T.2111/17 exercised its discretion under Art. 13(1) and (3) RPBA 2007 and admitted an auxiliary request filed in response to its communication because the amendments made were a promising attempt to overcome an objection it had **first** raised there.

In T.989/15 the board confirmed that the principles established by this case law also applied to a communication under Art. 15(1) RPBA 2020. Where the board's communication contained a preliminary opinion based solely on the issues raised by the parties and their arguments, that communication could not be taken as a justifiable trigger for submitting new requests that the parties could have filed earlier. The board was not persuaded by the appellant's argument that they could not have been expected to file an auxiliary request in reaction to every objection raised by the other parties. Exercising its discretion under Art. 13 RPBA 2007, the board decided not to admit the main request and the first to third auxiliary request, but admitted the fourth auxiliary request.

5.8. Circumstances extraneous to proceedings

5.8.1 Introduction

The boards have refused to accept the following justifications extraneous to the proceedings: T.160/89 (heavy workload); T.148/92 (doubts as to the definitive

embodiment of the invention; appellant's frequent need to travel); T 626/90 (lack of timely instructions), T 583/93 (OJ 1996, 496; lack of communication between the patentee and the licensee); T 575/94 (new instructions); T 1697/13 (necessary consultation of the applicant) and T 2575/11 (transfer of the patent and change of representative).

5.8.2 Change of representative

In several cases, a change of representative has been put forward as an explanation for the late filing of facts, evidence and requests. As a rule, the boards do not accept that as a valid reason, as was the case, for example, in T 830/90 (late-filed requests) and T 430/89 (late-filed documents and arguments); see also e.g. T 736/99, T 1351/10, T 497/11, T 139/12, T 792/12, T 1154/12, T 846/13 and T 1877/16.

In T 382/97 the board pointed out that the mere change of a representative was not a valid ground justifying the late filing of requests since it was an arbitrary move by the relevant party by which it could influence which procedural actions had to be considered as belated and which as timely. It was evident that such a situation would be contrary to any reasonable procedural conduct. Only if the change of representative was necessitated by proven exceptional and extraordinary circumstances might the board come to different conclusions. See also T 1748/08.

In T 785/96, under cover of a letter sent just one month before the oral proceedings before the board, the appellant filed additional experiments. The appellant stated that the reason for this late filing was a change of representative, after which the necessity of the experiments had appeared. The board confirmed the decision T 97/94 (OJ 1998, 467) and stated that a change of representative did not form an acceptable ground for late filing unless it was due to force majeure. The new representative was obliged to continue the proceedings from the point they had reached when he took over from his predecessor (see also T 552/98 and T 180/14).

In T 1282/05, the board held, inter alia, that a withdrawal of the representative did not justify the late return to broader subject-matter which had not yet been discussed in the appeal proceedings because the board had to assume that all actions of the former representative had been performed in consultation with and with the approval of the appellant, to whom they therefore had to be imputed. See also T 1585/05 and T 1420/06.

A change in the person handling the case is not an extraordinary circumstance justifying the filing of a request at a late stage in appeal proceedings, especially where the objections to be overcome were raised at the outset (T 1457/08).

5.8.3 Illness of representative

In T 1032/96, the board held that the late transfer of the case to the representative owing to the illness of a colleague was not sufficient justification for the failure to submit the set of claims until just three days before the date of the oral proceedings.

In T 336/11 in view of these exceptional circumstances the board admitted the new objections of the opponent's new representative into the proceedings which were filed late due to the representative's severe illness and death.

5.8.4 Change of ownership or representation

In T 1170/12 the board stated that a change of ownership or representation did not normally justify late amendments or a divergence from subject-matter previously claimed. The new owner takes over the application in the state that it is in at the time of transfer of ownership. The EPO and the public must be able to rely on the steps taken by an applicant.

5.8.5 Business reasons

In T 764/03, the only reason given by the appellant for the failure to introduce the auxiliary requests at an earlier stage of the proceedings was that the patentee had taken so long to reach a decision on the patent content which it considered useful to prosecute from a competition point of view. The board observed that only the rules and the circumstances of the appeal proceedings in question could be considered when determining when requests had to be regarded as belated and what the legal consequences of such belatedness were. Circumstances extraneous to the proceedings, such as e.g. licensing negotiations or infringement proceedings were not factors which could be taken into account, unless they were put forward as grounds for a request for accelerated handling of a case (see also T 356/08, T 28/10).

In T 1544/08 the board stated in its catchword that the wish to avoid giving commercially valuable information to competitors was not necessarily a valid reason for not complying with the requirement of Art. 12(2) RPBA 2007.

5.9. New submissions in proceedings resumed before the boards

In R 16/13 the Enlarged Board set the contested decision aside and ordered that the proceedings (in T 379/10, closed by decision of 21 September 2015, decision under review of 5 March 2013) be resumed. On doing so, the board held that such resumptions of appeal proceedings were confined to rectifying the defect identified on review. The appellant took the view that filing comparative tests was an essential part of the comments that R 16/13 had allowed it to make. But the newly filed tests raised an admissibility issue: whether they merely helped the appellant to overcome the board's objection – which R 16/13 had said it could comment on – or whether they went further and would thus extend the subject-matter of the resumed proceedings beyond that specified in the petition for review decided on in R 16/13. The board held that the new tests and line of argument would indeed extend the subject matter, and therefore declined to admit them into the resumed proceedings.

5.10. Late submission of new arguments and lines of attack

5.10.1 New arguments on appeal

Further information on "new arguments" is contained in chapter IV.C.4.6. More recent decisions on this term, taken in the context of the RPBA 2020, are reported in chapters V.A.4.2.2.i) "New objection based on documents already on file – new arguments with factual elements" and V.A.4.2.2n) "Submissions concerning the interpretation of the law".

Art. 12(2) RPBA 2007 provides that the statement of grounds of appeal should specify expressly all the facts, **arguments** and evidence relied on by the party. Art. 13(1) RPBA 2007 leaves it to the board's discretion to admit any amendments to a party's case after that.

The board in T.1621/09 held that, to the extent the Enlarged Board of Appeal's opinion in G.4/92 (OJ 1994, 149) dealt with the general admissibility of new arguments in appeal proceedings, it had to be regarded as having been modified by the amendments to the RPBA introduced with effect from 1 May 2003. In addition, the board examined whether or not new arguments first brought forward during oral proceedings but based on citations already in the proceedings could constitute an amendment to a party's complete case within the meaning of Art. 13(1) RPBA 2007. The board said they could, and concluded that the admissibility of such arguments was therefore prima facie a matter for the board's discretion. The boards in T.232/08, T.1069/08, T.1732/10, T.1761/10, T.433/11 and T.1847/12, came to similar conclusions.

The board in T.1914/12 held (contrary to T.1621/09) that the boards did not have any discretion when it came to the admissibility of late-filed arguments based on facts already in the proceedings. Invoking Art. 114 EPC, which in English referred to arguments (as well as to facts and evidence) in paragraph 1, but not in paragraph 2, it concluded that the discretion conferred by paragraph 2 did not extend to late-filed arguments and observed that this was in line with the pre-2011 case law (e.g. T.92/92, T.861/93, T.131/01, T.704/06, T.926/07 and T.1553/07). The board was unconvinced by the reasoning underlying T.1069/08 and T.1621/09. Their interpretation ignored the fact that Art. 114(2) EPC provided no justification for such discretion, as the older case law had held many times. In English at least, the EPC, and in particular Art. 114, treated facts and arguments differently. More specifically, Art. 114(2) EPC explicitly conferred discretion for late-filed facts but not for late-filed arguments based on facts already in the proceedings. The RPBA, although they could provide more detail on and help in interpreting the EPC, could not give the boards powers that the EPC did not. See also T.1359/14.

In T.1875/15 the board followed the finding in T.1914/12 that a board has in principle no discretion not to admit late-filed arguments. However, it also noted that if a late-filed objection included new allegations of fact, the board had, under Art. 114(2) EPC, the discretion not to admit it into the proceedings. The board held that the respondent's objection under Art. 100(c) EPC, which had been raised for the first time during the oral proceedings before the board, included not only legal but also factual (and technical)